

Indian Polity

Lecture 01: Historical Background

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

Several constitutional features of India have their roots in British rule. Events during British administration shaped the legal and administrative framework of modern India. The British created laws, courts, and administrative structures that later influenced the design of the Indian Constitution.

Historical Timeline at a Glance

Year / Event	Significance
1600	East India Company (EIC) granted charter by Queen Elizabeth I – exclusive trading rights in India
1765	Diwani rights (revenue & civil justice) of Bengal, Bihar & Orissa granted to EIC by Mughal Emperor Shah Alam after Battle of Buxar – beginning of territorial power
1773	Regulating Act – First British law to regulate EIC; first step towards central administration
1858	Government of India Act – British Crown assumed direct control after Revolt of 1857
1947 (Aug 15)	India's Independence
1950 (Jan 26)	Constitution of India came into effect

Two Phases of British Rule

- **Company Rule (1773-1858):** India governed by the East India Company under Parliamentary regulation.

Space for Notes

- **Crown Rule (1858-1947):** India governed directly by the British Crown through the Viceroy and the Secretary of State for India.

Space for Notes

COMPANY RULE (1773-1858)

Regulating Act of 1773

- First step towards **central administration** in India.
- First British law to formally **regulate** the East India Company's activities.
- Recognised the **political and administrative role** of the Company.
- Laid the **foundation of central administration** in India.

Key Features

- **Governor-General of Bengal Created:** Governor of Bengal elevated to Governor-General of Bengal, assisted by an Executive Council of 4 members. First Governor-General: **Lord Warren Hastings**.
- **Subordination of Presidencies:** Governors of Bombay and Madras made subordinate to Bengal. Earlier, all three Presidencies were independent.
- **Supreme Court at Calcutta (1774):** Established with 1 Chief Justice + 3 other judges. First Supreme Court in India.
- **Ban on Company Officials:** Prohibited from private trade and from accepting gifts, bribes, or presents from Indians.
- **Strengthening Crown Control:** Court of Directors (Company's governing body) required to report revenue, civil, and military affairs to British Government.

Amending Act of 1781 (Act of Settlement)

Purpose: To remove defects in the Regulating Act of 1773, especially regarding powers and jurisdiction of the Supreme Court in Calcutta.

Key Features

- **Exempted Governor-General and Council** from jurisdiction of the Supreme Court for acts done in official capacity.
- **Exempted Company Servants** for actions in official capacity.
- **Excluded Revenue Matters** and revenue collection from Supreme Court jurisdiction.